

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Vishakhapatnam **PS:** ACB Vishakhapatnam
Year: 2024
FIR No: RC0362024A0025 **Date:** 24/10/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	420	
IPC	468	
IPC	471	
PC Act-1988	13(2) r/w 13(1)(d)	
PC Act-1988	5(2)	5(1)(d)

3. **Suspected offences:** Forgery, Cheating, Criminal Misconduct

(a) **Occurrence of offence:**

Day: **Time Period:**
From Date: 1986 **To Date:** 2024

(b) **Information Received at PS:**

Date:

(c) **General Diary Reference:**

Entry No.: 5
Date: 24/10/2024 **Time:** 10:47:14

4. **Type of Information:** Written

5. **Place of Occurrence:** Customs House, Port Area, Visakhapatnam

(a) **Direction & distance from PS:** South-West, 8 km

Beat No.:

(b) **Address:**

Plot No.: **Area:**
City: visakhapatnam **Pin:**
State: Andhra Pradesh **District:** Visakhapatnam

(c) **In case, outside the limit of this Police Station, then**

Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Neelam Sreedhar

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Principal Commissioner

(g) **Address:**

Plot No	Area	City	State	District	Pin
Custom House, Port Area			Andhra Pradesh	Visakhapatnam	

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Mr.Namarla Satyanarayana , **Ministry:** Min. of Finance(Custom And Central Excise)

Address:

Assistant Commissioner, CC (AR), CESTAT, Chennai, Chennai, Chennai, Tamil Nadu

B, Palm Estates, No.38, Kothari Road,, Opposite to Railway Officers Club, Nungambakkam, Chennai, Chennai, Tamil Nadu

Door No.34-14-37, Manual Street, Gnanapuram, Visakhapatnam, Visakhapatnam, Andhra Pradesh

8. Reasons for delay in reporting by the complainant/informant:

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any:

12. First information contents:

A complaint dated 02.01.2024 (signed on 05.01.2024) has been received from Shri. Neelam Sreedhar, Principal Commissioner, Custom House, Port Area, Visakhapatnam against Shri Namarla Satyanarayana @ Shri Namala Satyanarayana, the then Superintendent (Preventive), Customs, Visakhapatnam and presently working as Assistant Commissioner, CC (AR), CESTAT, Chennai.

It is alleged in the complaint that Shri Namarla Satyanarayana, Superintendent (Preventive), Customs, Visakhapatnam is maintaining dual identity by obtaining two 10th class certificates i.e. one in the name of Namala Satyanarayana said to be obtained from St. Peter High School, Gnanapuram, Visakhapatnam and the other one is in the name of Namarla Satyanarayana said to be obtained from St. Ann's School, Bheemunipatnam, Visakhapatnam. He belongs to BC-A (Dasari) Community but, he fraudulently obtained false ST caste certificate in the name of Namarla Satyanarayana. By using the said false ST caste certificate, he got a Government job in Customs Department and gained wrongfully by receiving salary over a long period of 37 years.

It is further alleged that during the period from 1971 to 1980, he studied in St. Peter High School, Gnanapuram, Visakhapatnam and recorded his caste as BC-A (Dasari) and obtained 10th class pass Certificate from the said school during the year 1980 in the name of Namala Satyanarayana.

It is further alleged that he obtained false/forged ST-Kondadora caste certificate in his name by changing his surname as Namarla from Namala and by using the said ST Caste certificate, he obtained another 10th class certificate from St. Ann's School, Bheemunipatnam, Visakhapatnam with name as Namarla Satyanarayana during the year 1982.

It is further alleged that he used 10th class certificate of St. Ann's School, Bheemunipatnam, Visakhapatnam and false ST caste certificate and got selected as LDC in Customs Department during the year 1986 and posted at Visakhapatnam. He also gained wrongfully i.e. got promoted to various ranks from time to time under reserved category i.e. ST quota and received salary and other allowances which resulted in wrongful loss to Government of India and also deprived the opportunity to the genuine candidates for selection as Lower Division Clerk under ST Category.

The complaint prima-facie discloses Shri Namarla Satyanarayana @ Namala Satyanarayana committed offences punishable u/s 420,468,471 IPC; Sec.5(2) r/w Sec.5(1)(d) of PC Act 1947; and Sec.13(2) r/w 13(1)(d) of PC act 1988.

Hence, the FIR.

Encl: Original complaint dated 02.01.2024 (signed on 05.01.2024) of Shri. Neelam Sreedhar, Principal Commissioner, Custom House, Port Area, Visakhapatnam.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

SANJOY SEN

Rank:

DY. SUPDT. OF POLICE (ACB Vishakhapatnam)

No:

47562

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Complaint against Shri Namarla Satyanarayana

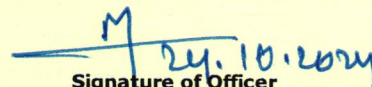
FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

15. Date and time of dispatch to the Court:

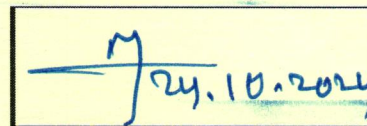
Forwarded to the Hon'ble pri. Spl. Judge
for CBI cases, Visakhapatnam.


Signature of Officer
in-charge Police Station

Name: Murali Rambha

Rank: SUPDT. OF POLICE (ACB
Visakhapatnam)

Superintendent of Police & HoB
C.B.I., A.C.B., Visakhapatnam.



Superintendent of Police & HoB
C.B.I., A.C.B., Visakhapatnam.

/1657600/2024

CONFIDENTIAL

सीमा शुल्क प्रधान आयुक्त का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS
 सीमा शुल्क सदन :: पत्तन क्षेत्र :: विशाखापटनम - 530 035
CUSTOM HOUSE :: PORT AREA :: VISAKHAPATNAM – 530035

फोन :: (0891) 2564552 :: फ़ैक्स :: (0891) 2562613

PHONE :: (0891) 2564552 :: FAX :: (0891) 2562613 :: Email: ciu-cusvzg@gov.in

F. No. / फ. सं.: S20/05/2021-CIU

Date / दिनांक: 02/01/2024

To
 The Superintendent of Police,
 Central Bureau of Investigation,
 ACB, Door No.: 1-83-21/4, MVP Double Road,
 Sector-8, MPV Colony, Visakhapatnam-530017.

Sir,

Sub.: Criminal misconduct involving dual identity, having two 10th class certificates, etc by Shri Namarla Satyanarayana, Superintendent (P), Customs, Visakhapatnam (presently Assistant Commissioner, CC (AR), CESTAT, Chennai – request investigation of the case – Regarding.

* * * * *

Please refer this office letter of even number dated 02.06.2022 (copy enclosed) on the above subject and your office letter number DPVIS2023/CS-1/CO 19/22/CBI/VSP/79, dated 16.02.2023 (copy enclosed) advising to lodge two separate complaints i.e., (i) one complaint for allegations of criminal misconduct in maintaining dual identity and obtaining two 10th class certificates and (ii) another complaint for possession of disproportionate assets.

2. In this connection, it is to inform that Pr. DG, Directorate General of Vigilance, CBIC, New Delhi has accorded approval for filing two separate complaints against the subject officer to the jurisdictional CBI, Visakhapatnam by the Principal Commissioner of Customs, Visakhapatnam as communicated vide letter No.: DGoV/Vig/COM/OTH/69/2022-Gr B-O/ ADG-DGOV-ZU-HYD, dated 29.11.2023 (copy enclosed). Accordingly, the following complaint regarding maintaining dual identity,

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two 10th class certificates and fake / false caste certificate by Shri Namarla Satyanarayana, Superintendent (P), Customs, Visakhapatnam (presently Assistant Commissioner, O/o Chief Commissioner (AR), CESTAT, Chennai) is filed for further investigation by CBI.

3. In this connection, it is to inform that various complaints, inter alia, maintaining dual identity by obtaining two 10th class certificates, fake ST caste certificate for obtaining government job, forgery, falsification of records, etc were received against Shri Namarla Satyanarayana, Superintendent of Customs (Preventive), Visakhapatnam.

4. Regarding the issue of fake caste certificate, the Collector & District Magistrate, Visakhapatnam has earlier cancelled ST certificate of Shri Namarla Satyanarayana vide order (M)R.DIS.No.2351/2015/C5, dated 25.06.2018 (**Annexure-A**). However, the order dated 25.06.2018 of the Collector & District Magistrate cancelling ST certificate was stayed by the Principal Secretary, Social Welfare Department (TW.CV.2), Govt. of AP vide Memo No.: 11021/51/CV2/2018, dated 12.07.2018 on appeal filed by Shri Namarla Satyanarayana (**Annexure-B**). The appeal is still pending decision before the Principal Secretary, Social Welfare Department (TW.CV.2), Govt. of AP since July' 2018 onwards.

5. District Educational Officer, Visakhapatnam vide letter Rc. No.: 6567/C3/2019.DEO.VSP, dated 10.10.2019 (**Annexure-C**), forwarded the enquiry report of Deputy Education Officer (RC No.: 90/DyEOVSP/2019, dated 15.05.2019). Relevant extract of the Deputy Education Report is as under:

1. St Peters Aided High School, Gnanapuram, Visakhapatnam:

As per the report submitted by the Headmaster, St Peter Aided High School, Gnanapuram and as per the available records Sri Namala Satyanarayana S/o Venkata Rao has studied in St Peters Aided High School, Gnanapuram from 1975 to 1980 and detailed report as follows:

a. Admission No & Date of Joining	:	2755/ dt. 12.06.1975
b. SNo & Year	:	S No: Nil/ 12.06.1975
c. Name of the pupil	:	NAMALA SATYANARAYANA
d. Name of the School studied	:	St Peter Aided High School
e. Fathers Name	:	NAMALA VENKATA RAO

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f. Date of Birth	:	03.05.1965
g. Religion and Caste	:	HINDU & DASARI
h. Date of Admission	:	12.06.1975
i. Class of Admission	:	VI "B"
j. Record Sheet No & Date	:	5824 Dt 16.06.1970
k. Date of leaving class & year	:	11.04.1980-X class completed
l. Transfer Certificate No & Date	:	287/ Dt 30.06.1980

2. St. Ann's Aided High School Bheemunipatnam, Visakhapatnam:

As per the report submitted by the Headmistress, St ANNS Aided High School, Bheemunipatnam they have not found any record except a note of 1982 October Nominal roll and the details are as follows:

a Roll No	:	53500
b. Name of the student	:	Namarla Satyanarayana
c. Date of Birth	:	03.09.1966
d. Community Code	:	ST
e. Month/Year	:	Oct-1982

From the above, it appears there exist two 10th Class Certificates i.e., one in the name of Namala Satyanarayana and the other in the name of Namarla Satyanarayana.

6. Shri Namarla Satyanarayana in the name of Namala Satyanarayana (after executing rectification deed vide Document No.: 1221/1996 (**Annexure-D**) for changing his surname from Namarla to Namala) executed Gift Settlement Deed for Rs.5,48,000/- with Document No.: 2446 of 2007, dated 21.08.2007 (**Annexure-E**) in favour of his son Namala Venkata Rao for gifting 75 square yards of land at Bhavani Gardens, Kapparada village within GVMC limits. In the said registered document, it is mentioned that Shri Namarla Venkat Rao being minor is represented by his mother Smt. Namala Nookaratnam w/o Satyanarayana residing at Door No.: 34-14-37, Manual Street, Gnanapuram, Visakhapatnam-530004. Shri Namarla Satyanarayana has never informed the department about changing his surname.

7. This office also approached Hon'ble Magistrate Court, Visakhapatnam before which cases involving Shri Namarla Satyanarayana are pending, by filing

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Miscellaneous Applications and obtained the following documents (**Annexure-H**) pertaining to the officer:

- a. copy of Charge Sheet in (Calendar case) CC No.196/2017;
- b. copy of Case Diary: in (Calendar case) CC No.196/2017; and
- c. copy of written statement of Shri Namala Satyanarayana in (original suit) OS No.: 976/2017.

In the above Court documents, name of the officer is mentioned as Namala Satyanarayana whereas in the records of the Customs Department his name is mentioned as Namarla Satyanarayana. From these documentary evidences, *prima facie*, it appears that Shri Namarla Satyanarayana is maintaining dual identity. Further the issue of obtaining two SSC (i.e., 10th class) certificates by misrepresentation and forgery also needs to be investigated, which is mentioned in the preceding paras.

8. In this regard, relevant extracts of CVC's Vigilance manual 2021 are given below:

Para 5.1.1: " ...As a general rule, investigation into allegations of the types given below should be entrusted to the Central Bureau of Investigation or to the Anti-Corruption Branch in the Union Territories: (a) Allegations involving offences punishable under law which the Delhi Special Police Establishment are authorised to investigate; such as offences involving bribery, corruption, forgery, cheating, criminal breach of trust, falsification of records, etc.; (b) Possession of assets disproportionate to known sources of income;(c) Cases in which the allegations are such that their truth cannot be ascertained without making inquiries from non-official persons; or those involving examination of non-Government records, books of accounts, etc.; (d) Other cases of a complicated nature requiring expert police investigation ..."

From the above, it may be seen that the cases involving criminal misconducts need to be probed by expert investigation agency.

9. From the above detailed documentary evidences, *prima facie*, it appears that Shri Namarla Satyanarayana maintains dual identity. Further, issue of obtaining two 10th class certificates by misrepresentation and forgery needs to be investigated. The truth in the above allegations involving maintaining dual identity, forgery, falsification

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of records, etc against Shri Namarla Satyanarayana, Superintendent (Preventive), Customs, Visakhapatnam cannot be ascertained by this Department as they are of complicated nature requiring expert police investigation and as such needs to be investigated by CBI in terms of para 5.1.1 of Chapter 5 of CVC's Vigilance Manual.

10. In view of the above, it is requested to investigate the subject issue of criminal misconduct involving dual identity, two 10th class certificates, etc by Shri Namarla Satyanarayana.

11. Further, it is to intimate that the non-criminal aspects of the subject issue i.e., (i) Un-authorized absence; (ii) Mis-declaration of the family particulars and IPRs at the time of joining the department; and (iii) Non-filing of Immovable Property Returns (IPRs) is being investigated by the department. This matter is brought to the notice of the CBI so as to avoid parallel investigation covering these three issues in terms of Para 5.4 of the Handbook of Vigilance Administration, 2022.

Encl.: As above.

Yours faithfully

N. Sridhar

05/01/2024

Signed by

Neelam Sridhar

Principal Commissioner
Date: 05-01-2024 10:20:03

Copy submitted to:

The ADG, DGoV, Customs & Central Tax, Hyderabad Zonal Unit, H. No.: 1-11—
251/10, SV Trinabh Heights, Begumpet, Hyderabad-500016: for information with
reference to the letter dated 29.11.2023.